

Second Restated Bylaws of the SkillSphere Foundation

Adopted: August 27, 2026

These Second Restated Bylaws supersede and replace all previous versions of the bylaws of SkillSphere Foundation.

Legal Notice & Disclaimer

The SkillSphere Foundation (“the Corporation”) is a nonprofit corporation incorporated in Delaware and operated exclusively for charitable and educational purposes under Section 501(c)(3) of the Internal Revenue Code. The Corporation is governed by its Board of Directors and operates in accordance with its Bylaws and applicable laws. The Corporation shall indemnify directors and officers to the fullest extent permitted by Delaware law and shall not be liable for the Corporation’s debts, except as required by law. The Corporation shall have no members. All assets are dedicated to The Corporation’s mission and may not benefit private individuals. The Corporation shall not participate in or intervene in any political campaign on behalf of or against any candidate.

Non-Discrimination Policy

The Corporation does not discriminate on the basis of race, color, religion, sex, gender identity, sexual orientation, national origin, age, or disability. The Corporation is committed to providing an inclusive and respectful environment in all programs and activities.

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SkillSphere Foundation

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Employer Identification Number

39-2560980

ARTICLE I - Name & Purpose

Section 1: Name & Mission

The organization shall be known as SkillSphere Foundation (“the Corporation”). The Corporation is a nonprofit organization organized and operated exclusively for charitable, educational, and scientific purposes, including the making of distributions to organizations that qualify as exempt organizations under Section 501(c)(3) of the Internal Revenue Code.

The purpose of this nonprofit organization is to promote education in technology and business, especially by providing more opportunities to children in need who are interested in these fields. The Corporation aims to provide workshops, networking opportunities, and support to individuals seeking to enhance their understanding of how technology and business intersect, while fostering an inclusive community of learners and professionals.

The Corporation shall not engage in activities that are not substantially related to these purposes, except as permitted under Section 501(c)(3) of the Internal Revenue Code.

Section 2: Vision

The Corporation envisions a world in which all students, regardless of background or resources, have access to high-quality education in technology and business. It seeks to empower young individuals to become future leaders, innovators, and entrepreneurs who contribute positively to their communities and the broader economy.

Section 3: Scope of Activities

To carry out its mission, The Corporation may engage in the following activities:

3.1) Workshops and Educational Programs - Providing free or low-cost instruction in technology, business, entrepreneurship, and related fields.

3.2) Educational Resources - Developing and distributing learning materials, tools, and instructional content.

3.3) Mentorship Programs - Connecting students with mentors to support academic and professional development.

3.4) Community Engagement - Building an inclusive learning environment for students, educators, and professionals.

3.5) Partnerships - Collaborating with schools, organizations, and businesses to expand educational access and impact.

ARTICLE II - Board of Directors

Section 1: Board Structure

The Board of Directors shall consist of not fewer than three (3) nor more than nine (9) directors. Directors must be at least eighteen (18) years of age. The acting Board of Directors shall include: Pavithran Gujja (President of the Board), Simy Simon, Anuradha Chittimalla, and Chaitanya Kumar Chittimalla.

Section 2: Authority and Responsibilities

The Board of Directors holds ultimate fiduciary responsibility for the Corporation. The Board is responsible for ensuring that the organization operates in accordance with its mission, Bylaws, and all applicable laws.

The Board may approve policies, oversee financial operations, and appoint or remove officers as necessary.

Section 3: Terms and Election

Directors serve two-year terms and may serve unlimited consecutive terms. Directors are elected by a majority vote of the directors then in office. Terms are staggered where practical so that not all terms expire in the same year.

Section 4: Resignation, Removal, and Vacancies

A director may resign at any time by written notice to the Board. A director may be removed, with or without cause, by a two-thirds vote of the other directors then in office. Vacancies are filled by a majority vote of the remaining directors, and a director so elected serves the remainder of the vacated term. If all directorships become vacant, the officers shall promptly convene to nominate successor directors, who take office upon written acceptance.

Section 5: Compensation

Directors serve without compensation. Directors may be reimbursed for reasonable, documented expenses incurred on behalf of the Corporation.

Article III - Officers

Section 1: Officer Roles

The Corporation shall appoint a core group of Officers responsible for the day-to-day administration, program execution, and operational leadership of the organization. These Officers operate under the authority of the Board of Directors and do not constitute the Board. The initial Officers of the Corporation shall include:

Co-President - Ridhun Gujja: Leads programs and curriculum development, oversees the Corporation's technology and web presence, and directs internal execution of initiatives.

Co-President - Devkrishna Manappattu: Leads external partnerships, outreach, and communications and represents the Corporation to schools, partners, and the public.

Treasurer - Yashas Sai Chittimalla: Responsible for maintaining financial records, tracking expenditures and donations, and assisting with budgeting under Board oversight.

Director of Operations - Nandana Padmaraj: Responsible for overseeing internal operations, coordination between teams, scheduling, and serving as records custodian, maintaining minutes, resolutions, and corporate records other than financial records.

Fundraising Lead - Nikita Iyer: Leads fundraising campaigns, donor outreach, fundraising events and partnerships, and supports donation tracking with the Treasurer.

The Board may, by resolution, create additional officer roles and appoint individuals to them without amending these Bylaws.

Section 2: Authority of Officers

Officers manage day-to-day operations and implement programs in accordance with Board policies. They may make operational decisions within their roles but do not have fiduciary authority unless granted by the Board.

Section 3: Appointment and Term

Officers are appointed by the Board and serve at its discretion while active and effective in their roles.

Section 4: Removal and Replacement

The Board may remove or replace any Officer at any time to ensure proper operations and alignment with the Corporation's mission.

Article IV - Meetings

Section 1: Annual Meetings

The Board of Directors shall hold at least one annual meeting to review operations, financial status, and organizational goals.

Section 2: Special Meetings

Special meetings may be called by the Board as needed to address urgent matters. Notice shall be given to all Directors in advance.

Section 3: Notice

Written or electronic notice of meetings shall be provided at least five (5) days in advance, including the date, time, and agenda when possible.

Section 4: Quorum

A majority of the Board of Directors shall constitute a quorum for conducting official business.

Section 5: Voting

Each Director shall have one vote. Decisions are made by simple majority unless otherwise required by these Bylaws.

Section 6: Record-Keeping and Confidentiality

The Corporation shall maintain accurate records of meetings, finances, and key documents. Records shall be retained in accordance with standard nonprofit recordkeeping practices.

Section 7: Board Attendance

Board members are expected to attend meetings regularly and to notify the Board in advance if they are unable to attend.

Section 8: Virtual Meetings

Meetings may be held virtually using electronic communication tools. Virtual meetings are considered official, provided quorum requirements are met.

Section 9: Action Without a Meeting

Any action required or permitted at a Board meeting may be taken without a meeting if all directors then in office consent in writing (including by email), and the written consents are filed with the corporate records.

Article V: Financial Management

Section 1: Financial Oversight

The Board of Directors is responsible for overseeing the financial affairs of the Corporation and ensuring funds are used in accordance with its mission.

Section 2: Budgeting

An annual budget shall be prepared and approved by the Board. Financial activity should align with the approved budget.

Section 3: Revenue and Fundraising

The Corporation may receive funds through donations, grants, and fundraising activities, all of which must support its nonprofit mission.

Section 4: Financial Records

Accurate records of all income and expenses shall be maintained and made available for Board review as needed.

Section 5: Use of Funds

All funds shall be used solely to support the Corporation's mission. No funds may be used for personal benefit.

Section 6: Fiscal Year

The fiscal year of the Corporation shall be January 1 through December 31.

Section 7: Reimbursement for Startup Expenses

The Corporation may reimburse documented, reasonable expenses incurred on behalf of the organization during its formation and early operations. All reimbursements must be supported by receipts or other proof of payment and must directly relate to organizational formation, operations, or approved activities.

Any reimbursement involving a Board member or related party must be disclosed and reviewed for approval in accordance with the Conflict of Interest Policy. The Board member with the conflict shall not participate in the decision regarding approval of such reimbursement.

Reimbursements shall be made only from available unrestricted funds and shall not constitute profit, compensation, or return on investment.

Article VI - Policies & Compliance

Section 1: Governance Integrity

The Corporation shall operate with transparency and ethical governance. Board members, officers, and key personnel must disclose any actual or potential conflict of interest. Individuals with a conflict shall not participate in discussions or decisions related to the matter.

Section 2: Ethics & Conduct

All members of the Corporation shall act in good faith, with honesty and integrity, and in a manner consistent with the mission of the organization. Misuse of position, funds, or authority for personal gain is strictly prohibited.

Section 3: Financial Integrity & Reimbursements

All funds shall be used exclusively for nonprofit purposes. Personal use of funds is prohibited except for documented and approved reimbursements for legitimate organizational expenses. All financial activity must be recorded in organizational records.

Section 4: Whistleblower Protection

Individuals who report concerns regarding unethical behavior, policy violations, fraud, or misuse of funds in good faith shall be protected from retaliation. Reports may be submitted to any officer or the Board and shall be reviewed promptly.

Section 5: Confidentiality & Privacy

All sensitive organizational, financial, donor, and personal data must be kept confidential. Information shall only be shared on a need-to-know basis or when legally required. Data collected through forms, registrations, or donations must be handled securely.

Section 6: Compliance with Law

The Corporation shall comply with all applicable federal, state, and local laws governing nonprofit organizations, including tax-exempt organization requirements under Section 501(c)(3) of the Internal Revenue Code.

Article VII - Amendments

The Bylaws may be amended to reflect the evolving needs of the Corporation, provided that all changes remain consistent with its nonprofit purpose and legal obligations.

Section 1: Proposal of Amendments

Amendments may be proposed by any Director or Officer and must be submitted in writing to the Board. Each proposal must clearly state the intended change and its purpose. The Board shall acknowledge receipt of any valid proposal in a timely manner.

Section 2: Review and Evaluation

The Board shall review all proposed amendments and may delegate analysis to a committee or designated members. The review shall consider the impact on operations, governance, mission alignment, and legal compliance. Legal counsel may be consulted when appropriate.

Section 3: Notice of Consideration

All Directors shall receive written notice of a proposed amendment prior to discussion. The notice shall include the text of the amendment and any supporting analysis or recommendations and shall allow sufficient time for review before deliberation.

Section 4: Board Deliberation

A meeting of the Board shall be held to discuss proposed amendments. Directors shall have the opportunity to ask questions, express concerns, and suggest modifications before any vote is taken. The meeting shall be conducted in accordance with quorum requirements established in these Bylaws.

Section 5: Approval

An amendment shall be adopted only upon approval by two-thirds (2/3) of the directors then in office, at a duly convened meeting or by unanimous written consent.

Section 6: Implementation

Approved amendments shall be incorporated into the official Bylaws and recorded in the Corporation's records. The updated version shall be distributed to Directors and Officers in a timely manner to ensure alignment across governance and operations.

Section 7: Public Disclosure

The Corporation shall maintain an accessible version of its governing documents. Any amendment that materially affects governance, mission, or financial structure shall be appropriately communicated to relevant stakeholders.

Article VIII - Dissolution

The Corporation may be dissolved in accordance with applicable Delaware law and the Internal Revenue Code provisions governing tax-exempt organizations.

Section 1: Decision to Dissolve

Dissolution may be initiated by a resolution of the Board of Directors and approved by a majority of the directors then in office, consistent with the Certificate of Incorporation. The Board shall ensure that the decision is made in good faith and after consideration of the Corporation's obligations, liabilities, and ongoing commitments.

Section 2: Settlement of Obligations

Prior to dissolution, the Corporation shall satisfy all outstanding debts and legal obligations to the extent of available assets. No distribution of assets shall occur until all liabilities have been addressed.

Section 3: Distribution of Assets

Upon dissolution, remaining assets shall be distributed exclusively for one or more exempt purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code. Assets shall be transferred to one or more qualifying charitable or governmental organizations as determined by the Board. Under no circumstances shall any assets be distributed to any director, officer, or private individual.

Section 4: Compliance with Law

Dissolution shall comply with all applicable state and federal requirements, including filings with the State of Delaware and the Internal Revenue Service, as required.

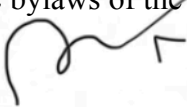
Section 5: Final Records

The Corporation shall maintain and preserve final financial records, meeting minutes, and dissolution documentation for the period required by law or standard nonprofit recordkeeping practices.

Adoption of Second Restated Bylaws

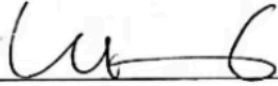
Pavithran Gujja, previously the sole director of SkillSphere Foundation, hereby appoints Simy Simon, Anuradha Chittimalla, and Chaitanya Kumar Chittimalla as directors of the Corporation, effective August 26, 2026.

The undersigned, constituting all of the directors of SkillSphere Foundation, accept their appointments and adopt these Second Restated Bylaws, together with the Conflict of Interest Policy, the Financial Management Policy, and the Privacy Policy, each dated August 26, 2026, which supersede all prior versions of those documents and of the bylaws of the Corporation.

Pavithran Gujja, President of the Board — Signature:  _____

Simy Simon, Director — Signature:  _____

Anuradha Chittimalla, Director — Signature:  _____

Chaitanya Kumar Chittimalla, Director — Signature:  _____